

VCL335931 Marroquin, Cesar vs. Edwards, Heather

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-10

Motion: Defendant Edwards' Motion to Quash

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Re: Marroquin, Cesar vs. Edwards, Heather

Case No.: VCL335931

Date: August 10, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Defendant Edwards' Motion to Quash

Tentative Ruling: To inquire as to service of this motion to quash; if not served, the Court denies the motion.

Facts and Analysis

On July 8, 2026, Defendant Heather Edwards filed this motion to quash the summons and complaint as to insufficient service under Code of Civil Procedure section 1162, improper service of the 30 day notice, lack of standing, failure to name indispensable parties, lack of personal jurisdiction.

There is no proof of service of this motion.

There is no opposition to the motion.

Therefore, the Court will inquire at the hearing as to whether the motion was served on Plaintiff's counsel.

If the motion to quash was not served, the Court's tentative ruling is to deny it, as California Rule of Court, rule 3.1237(a) requires notice under Code of Civil Procedure section 1167.4 of not less than three days.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the

court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.